

		issue of whether the Court should apply the forum-selection clause that requires that the matter be litigated in Clark County, Nevada.
207	<i>Cooper vs. Bennett</i>	The general demurrer of defendants Paul Bennett and Kathy Sakioka to the eighth, ninth, and tenth causes of action in the complaint of plaintiffs Simone and Ronald Cooper is SUSTAINED with leave to amend. Defendants demur generally to the eighth, ninth, and tenth causes of action in the complaint. They also demur specially on the ground of uncertainty to the tenth cause of action. Plaintiffs concede the merits of the demurrer to the eighth cause of action but oppose it with respect to the ninth and tenth causes of action. <u>The ninth cause of action for tenant harassment.</u> The ninth cause of action is for tenant harassment under Civil Code § 1940.2 et seq. Plaintiffs allege that section 1940.2 “prohibits specified forms of landlord conduct undertaken to influence a tenant to vacate, including willful conduct that interferes with a tenant’s quiet enjoyment and conduct intended to cause a tenant to quit involuntarily.” (Complaint, ¶ 83.) They then allege that, after plaintiffs complained of dangerous and uninhabitable conditions and asserted their rights as tenants, defendants “engaged in a course of conduct intended to pressure Plaintiffs to vacate, including servicing a sudden rent demand mischaracterized as a ‘market rate’ increase to \$3450 effective December 15, 2025, while the premises continued to suffer from ongoing conditions Plaintiffs had complained about.” (Complaint, ¶ 84.) While this may have been unfair, this rent increase does not appear to be the type of tenant harassment prohibited under section 1940.2. Plaintiffs’

	allegations in paragraph 83 appear to be referencing subdivision (a)(c) of section 1940.2. In its entirety, subdivision (a)(c) states that the following conduct by a landlord is unlawful “for the purpose of influencing a tenant to vacate a dwelling”: Use, or threaten to use, force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant's quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person. Nothing in this paragraph requires a tenant to be actually or constructively evicted in order to obtain relief. Civil Code section 1927, which is referenced in the subdivision, relates to “quiet possession of hire.” Thus, a simple increase in rent does not constitute a violation of section 1940.2. The demurrer is sustained with leave to amend. <u>The tenth cause of action for intentional misrepresentation.</u> In the tenth cause of action for intentional misrepresentation, plaintiffs allege that, on November 1, 2025, they made a demand in writing that rent would be increasing to the “market rate” of \$3450 month, effective December 15, 2025 and that plaintiffs should either accept the increase or be pressured to vacate the premises. (Complaint, ¶ 90.) Plaintiffs allege that the representation that \$3450 was the market rate for the unit was false and was made in retribution for their complaints and assertion of their tenants’ rights. (Complaint, ¶ 91.) Plaintiffs further allege that defendants “made the representation with the intent to induce reliance by Plaintiffs and to influence Plaintiffs’ housing decision, including by pressuring Plaintiffs to vacate.” (Complaint, ¶ 92.) Plaintiffs allege that they relied on defendants’
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	representation and decided to vacate the premises, thereby sustaining damages that included moving and relocation costs. (Complaint, ¶¶ 93 and 94.) Defendants contend that the cause of action lacks all of the elements of fraud, particularly the elements of justifiable reliance and causation, citing <u>Beckwith v. Dahl</u> (2012) 205 Cal.App.4th 1039, 1062. There, the court stated that a plaintiff asserting fraud by misrepresentation is required to establish a complete causal relationship between the alleged misrepresentations and the harm claimed to have resulted therefrom. It added that the causation aspect of actions for damage for fraud and deceit involves three distinct elements: (1) actual reliance, (2) damage resulting from such reliance, and (3) right to rely or justifiable reliance. <u>Ibid.</u> Here, the allegations do not show that the representation that the rent increase reflected the market rate for the unit resulted in the plaintiffs' decision to vacate the unit; rather, it was the amount of the prospective rate increase itself that resulted in that decision. Defendants' argument is meritorious and the demurrer is sustained to this cause of action with leave to amend. The motion of defendants Paul Bennett and Kathy Sakioka move to strike portions of the complaint by plaintiffs Simone and Ronald Cooper is GRANTED with leave to amend to the extent that it is not mooted by the ruling on the demurrer. The individual paragraphs referenced in item 1 of the notice of motion are at the very end of the first, fifth, sixth, seventh, eighth, and ninth causes of action for negligence, fraud, retaliation, constructive eviction, unlawful rent increase/demand for excessive rent, and tenant harassment. They are identical and allege:
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		“The above conduct was the result of malice, fraud, and oppression, justifying punitive damages.” Because the allegations are conclusory, they are defective to the extent they are not mooted by the ruling on the demurrer. Defendants shall give notice.
209	<i>Newport Jewish Center vs. Auschwitz Study Foundation</i>	Defendant Auschwitz Study Foundation’s application to admit counsel Michael O. Crain to appear pro hac vice is GRANTED and Defendant’s motion to strike portions of the complaint is GRANTED, in part. <u>Pro Hac Vice Application:</u> Counsel has submitted a verified application that complies with the requirements of California Rules of Court, rule 9.40. <u>Motion to Strike:</u> Item nos. 1-8 listed on Defendant’s notice of motion is GRANTED in full; Item no. 9 is GRANTED as to the prayer for attorney fees only. (See Code of Civ. Proc. § 436, subd. (a), § 431.10, subd. (b)(1-(3), (c); <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682-1683 [standard].) Attorney fees are recoverable when authorized by contract, statute or law. (Code of Civ. Proc. § 1033.5, subd. (a)(10).) Plaintiff concedes there is no contractual or statutory or other legal basis for the recovery of attorney fees. Defendant shall give notice.